

Franciscus Dylan Rosario,
7624 Melody Drive
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
07/29/2026
Clerk of the Court
BY: SANDRA SCHIRO
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
Michael R. Chambers;
Carbone, Smith & Koyama;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

(Related: CGC-21-594102; CGC-25-631802)

**PLAINTIFF'S BENCH BRIEF FOR
CHAMBERS AND RESEARCH
ATTORNEYS**

RE: DEFENSE OBJECTIONS TO RECONSIDERATION

(CCP sections 1008(a), 473(d); Inherent Authority; Evid.

Code sections 451-453)

Hearing Date: July 31, 2026

Time: 9:00 a.m.

Dept.: 301

Judge: Hon. Christine Van Aken

Matter: Supplemental / chambers bench brief ISO
continued reconsideration (CRC 3.1113(j)); operative Tx
79830359; Wong fully litigated)

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure sections 1008, subdivision (a), 473, subdivision (d), and 2015.5; and California Rules of Court, rules 2.256, subdivision (b), 2.257, 3.1110, and 3.1113.

3. The Clerk’s authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257.
4. This paper is timely filed for the July 31, 2026 hearing in Case No. CGC-25-631801, Department 301 (operative Tx **79830359**).
5. Under CRC 3.1113(j), Plaintiff incorporates by reference, without repeating a new full motion, the June 22, 2026 Memorandum and supporting papers filed with Tx **79830359**, and the Wong Request for Judicial Notice filed with Tx **79843899** (FSX **79843794** in the related caption). This bench brief supplements those papers; it does not replace them.

Papers responded to: Opp. filed 07/22/2026 (ROA 185, Tx **80106203**, DocID **10334397**); O’Connell Decl. filed 07/20/2026 (ROA 184, Tx **80082937**, DocID **10329044**); EFS-020 Proposed Order Cover Sheet filed 07/16/2026 (ROA 183, Tx **80059270**, DocID **10324166**).

I. ISSUE MAP

Defense contention (Opp. ROA 185)	Plaintiff record answer
Procedural / notice / “cascade” (Opp. p. 2, ll. 5-9 & n.1)	Actual receipt and the Court’s continuance to July 31 supply notice (CCP sections 1005, 1010). The “cascade” is the July 15 FILE-TODAY cohort with defined CRC / Evid. Code functions (O’Connell Decl. Ex. A, ROA 184).
Ripeness: “not yet ripe” (Opp. p. 2, ll. 10-12)	Court already found prematurity on 07/15/2026 and continued. CRC 3.1312(a) default is defense-caused (O’Connell paragraphs 6, 7, 8, 9, 12). NOE sets the outer 10-day cutoff, not a pre-notice jurisdictional bar.
“No new facts” / relitigation (Opp. p. 2, ll. 23-26)	Wong RT 11 incomplete adjudication of VC 22107 / 21804(a) is a new or different circumstance under CCP § 1008(a). May 12 “fully litigated” (DocID 10210043) and Wong RT 11 cannot both be true.

Defense contention (Opp. ROA 185)

Plaintiff record answer

Footnote 1: 802 vexatious motion
08/26/2026

Out of case. Hard scope is 801 only. No
vacatur of 802 DocID 10297081; no UIPA
merits.

II. RIPENESS CURED; CRC 3.1312(A) DEFAULT IS DEFENSE-CAUSED

A. THE COURT’S 07/15/2026 CONTINUANCE FINDING

On July 15, 2026, the Court adopted a tentative continuing Plaintiff’s reconsideration motion to July 31, 2026, 9:00 a.m., Department 301, before Hon. Christine Van Aken. The Court found the motion premature because a written order granting Defendants’ special motion to strike had not yet been filed or served, and because the matter must be heard by the judge who decided the special motion to strike.

Plaintiff agrees with that prematurity finding. Plaintiff does not ask the clerk to re-file or duplicate the June 22, 2026 Notice of Motion and Motion for Reconsideration (Tx **79830359**). That motion remains operative for July 31. Once signed order and notice of entry are served, the Court’s own continuance cures the timing defect the defense now recycles as a ripeness bar.

B. VERBATIM O’CONNELL DECL. CONCESSIONS (ROA 184)

Defense counsel’s own declaration establishes that the CRC 3.1312(a) gap is defense-caused:

- Paragraph 6: “Inadvertently, and in light of the concurrently pending Anti-SLAPP motion in Case No. CGC25631802, I simply failed to submit a draft Proposed Order to Plaintiff for his review and stipulation.”
- Paragraph 7: “On July 1, 2026, the Anti-SLAPP motion in Case No. CGC25631802, was granted. This Court served a Notice of Entry of Order on that Anti-SLAPP motion: negating the need to prepare a draft Proposed Order in that case.”
- Paragraph 8: “On July 10, 2026, upon realizing the omission in this case of a proposed order, I submitted a proposed order copying verbatim the contents of this Court’s May 12, 2026 Tentative Ruling granting Defendants’ Anti-SLAPP motion, in this case.”
- Paragraph 9: “Inadvertently, Plaintiff was not served with a copy of this Proposed Order.”

- Paragraph 12: “I concede this draft Proposed Order should have been served on Plaintiff back in May 2026. That omission was unintentional and simply overlooked given the concurrently pending Anti-SLAPP motion in Case No. CGC25631802.”

Those admissions place the fifty-nine-day lodging gap (May 12 to July 10) and the late service for stipulation (July 14) on defense counsel, not on Plaintiff.

C. GOVERNING AUTHORITIES

CCP section 1008(a) sets the outer filing cutoff after NOE, not a jurisdictional ban on pre-notice filing. (*Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 Cal.App.4th 868, 888-890; *Forrest v. Department of Corporations* (2007) 150 Cal.App.4th 183.) CCP section 187 permits the Court to continue until signed order and NOE are served. Civ. Code section 3517: no one can take advantage of his own wrong. CRC 3.1312(a) required lodging within five days; defense delayed until July 10, 2026.

III. THE “CASCADE” IS A FUNCTIONAL FILING COHORT

Defense brands Plaintiff’s post-May 12 papers a “veritable cascade” used to “burden[] and harass[]” (Opp. p. 2, ll. 7-9). Defense’s own O’Connell Decl. Exhibit A reprints Plaintiff’s July 15 stipulation-refusal email, which assigns each paper a defined court function. Each row is keyed to a CRC, Evidence Code, or CCP function. Volume is not harassment when each paper has a discrete procedural job.

IV. NEW OR DIFFERENT CIRCUMSTANCES: WONG RT 11

May 12 “fully litigated” (DocID **10210043**) and Wong RT 11 cannot both be true. On-face Wong RT 11 shows statutory negligence duty under Vehicle Code sections **22107** and **21804(a)** was not fully adjudicated.

Three on-face RT 11 statements:

1. Jury question (RT 11, p. 7, ll. 23-27): whether to consider Vehicle Code sections 22107 and 21804(A).
2. Written prohibition (RT 11, p. 7): “You may not consider Vehicle Code Sections 22107 and or 21804 subdivision A, nor will the Court instruct the Jury on those provisions.”

3. Oral explanation (RT 11, p. 8, ll. 4-9): neither section “were part of the evidence”; jury “not permitted to consider that as evidence in the case, period.”

Plaintiff objected; the court overruled. (RT 11, pp. 10, 13.)

Record pins: Tx **79830359**; Tx **79843899**; FSX **79843794**; DocID **10210043**.

Authorities: Evid. Code section 451(a); CCP section 614; *Lucido v. Superior Court* (1990) 51 Cal.3d 335; *Baral v. Schnitt* (2016) 1 Cal.5th 376; *Kolani v. Gluska* (1998) 64 Cal.App.4th 402; *Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1360-1362.

Narrow ask: qualify or vacate the prong-two “fully litigated” finding as to statutory negligence duty. Plaintiff is not asking Dept. 301 to finally decide instructional error in appeal A173827.

V. INDEPENDENT GROUNDS

1. CCP section 473(d): vacating or modifying void or defective entries.
2. Inherent authority: *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1107-1108.
3. Cal. Const. art. VI, section 1: constitutional judicial power independent of section 1008 technical objections once legal error is drawn to the Court’s attention.

VI. HARD SCOPE REMINDER

CGC-25-631801 only. No vacatur of CGC-25-631802 DocID **10297081**. No UIPA / Fair Claims merits. Footnote 1 vexatious-litigant motion (08/26/2026 in 802) is out of case.

VII. SCHEDULE OF UNADDRESSED ISSUES

Plaintiff asks the Court to rule or expressly decline each Schedule item on the record at July 31 (Q-1, Q-2, Q-12 and related rows in the source bench brief). Silence preserves as refusal to confront the listed contention. Controlling pins include Tx **79830359** / **79843899**; DocID **10210043**; Tx **79538563**; Tx **79564057**.

VIII. RECORD PIN CROSSWALK

Pin	What it is
ROA 185 / Tx 80106203 / DocID 10334397	Defense Opp. (07/22/2026)

Pin	What it is
ROA 184 / Tx 80082937 / DocID 10329044	O’Connell Decl. (07/20/2026)
ROA 183 / Tx 80059270 / DocID 10324166	EFS-020 Proposed Order Cover Sheet (07/16/2026)
Tx 79830359	June 22 Motion for Reconsideration (operative)
Tx 79843899 / FSX 79843794	Wong RJN / related-caption Wong path
DocID 10210043	May 12 minutes (“fully litigated”)
DocID 10297081	802 July 1 order (out of scope)
Tx 79538563 / Tx 79564057	May 21 / May 26 preservation
Tx 80112107 / DocID 10335262	Reply cohort DECL-COMPLIANCE (07/23/2026)
Tx 80115143 / DocID 10335864	Reply Exhibits A through F (07/23/2026; already filed; not re-appended)
Tx 80017153 / DocID 10315567	Prior bench memo (07/13/2026)

IX. CONCLUSION AND REQUESTED RELIEF

Plaintiff requests that the Court:

1. Reject Defendants’ procedural objections (ripeness, caption / cascade, and “no new facts”) as answered by the July 15 continuance, O’Connell’s concessions, and the Wong RT 11 record;
2. Grant reconsideration under CCP sections 1008(a), 473(d), and inherent authority (*Le Francois*), or qualify or amend the May 12, 2026 order (DocID **10210043**) so that prong-two “fully litigated” language does not run as to statutory negligence duty under Vehicle Code sections 22107 and 21804(a);
3. Address Wong qualification on the record; rule or expressly decline each Schedule item, including Q-1, Q-2, and Q-12;
4. Disregard Opp. footnote 1 as out of case;
5. Preserve hard scope: 801 only; no UIPA merits; no vacatur of 802 DocID 10297081;
6. Confirm official reporter for July 31 under CCP section 269.

Dated: July 29, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per
CGC-25-631801

7624 Melody Drive
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com